

[3 EDW. 7.]

*Pontypridd Urban District Council
Act, 1903.*

[Ch. cxv.]



CHAPTER cxv.

An Act to empower the Pontypridd Urban District Council to make a new street and other street works to lay down a tramway and to confer further powers upon the Council with regard to their gas and electricity undertakings and with regard to the good government and improvement of the district. A.D. 1903.
[21st July 1903.]

WHEREAS the district of Pontypridd in the county of Glamorgan (in this Act referred to as "the district") is an urban district and is under the management of the Pontypridd Urban District Council (hereinafter called "the Council"):

And whereas it is expedient that the Council should be authorised to make the new street and other street works in this Act described:

And whereas by the Pontypridd Urban District Council Tramways Orders 1901 and 1902 (duly confirmed by Parliament) the Council were authorised to construct and work certain tramways within the district:

And whereas it is expedient that the Council should be authorised to construct and work the additional tramway in this Act mentioned and to enter into working and other agreements with the owners and lessees of tramways and light railways in connection with the tramways of the Council as by this Act provided:

And whereas it is expedient that further powers should be conferred on the Council in regard to their electricity undertaking and that further and better provision should be made in regard to the government and improvement of the district as in this Act mentioned:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

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And whereas estimates have been prepared by the Council for the purposes hereinafter mentioned and such estimates are as follows:—

	£
For and in connection with the purchase of lands and the construction of the street works by this Act authorised - - - - -	30,860
For and in connection with the construction of the tramway by this Act authorised - - -	2,773
For gas mains gas plant and other purposes in connection with the gas undertaking of the Council - - - - -	25,000

And whereas the works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas an absolute majority of the whole number of the Council at a meeting held on the twentieth day of November one thousand nine hundred and two after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the *Pontypridd and Rhondda Valleys Chronicle* a local paper published and circulating in the district such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate:

And whereas such resolution was published twice in the *Pontypridd Observer* a local paper published and circulating in the district and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the third day of February one thousand nine hundred and three being not less than fourteen days after the deposit of the Bill in Parliament:

And whereas the owners and ratepayers of the district by resolution in the manner provided in the Third Schedule of the Public Health Act 1875 consented to the promotion of the Bill for this Act:

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also books of reference containing the names of the owners and lessees or reputed owners

and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Glamorgan and are in this Act respectively referred to as the deposited plans sections and books of reference: A.D. 1903.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

1. This Act may be cited as the Pontypridd Urban District Council Act 1903. Short title.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Street works.

Part III.—Lands.

Part IV.—Tramway.

Part V.—Electricity.

Part VI.—Financial and miscellaneous provisions.

Sub-division
of Act
into Parts.

3. The following Acts and parts of Acts so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with this Act (namely):— Incorporation
of Acts.

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845):

Sections 3 (Interpretation of terms) and 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870 Provided that section 19 shall be read and have effect as if the words "but nothing in this Act contained shall authorise any local authority to place and run carriages upon such tramways and to demand and take tolls and charges in respect of the use of such carriages" were omitted from that section.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context Interpreta-
tion.

A.D. 1903. repugnant to such construction And in this Act unless the subject or context otherwise requires—

“The Council” means the urban district council of Pontypridd;

“The district” means the urban district of Pontypridd;

“The clerk” means the clerk to the Council;

“The district fund” and “the general district rate” mean respectively the district fund and the general district rate of the district;

“Mechanical power” includes steam electrical and every other motive power not being animal power;

“Engine” includes motor;

“The tribunal” means the jury arbitrators umpire or other authority to whom any question of disputed compensation under this Act is referred;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond stock debenture debenture stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges securities payable to bearer or any securities of the Council.

PART II.

STREET WORKS.

Power to
make new
streets.

5. Subject to the provisions of this Act the Council may make and maintain in the lines and according to the levels shown on the deposited plans and sections the street works hereinafter mentioned together with all necessary viaducts bridges junctions retaining walls piers buttresses girders abutments embankments arches approaches steps sewers drains culverts works and conveniences connected therewith or incident thereto.

The street works above referred to and authorised by this Act are—

Work No. 1 A new street commencing in Rhondda Road and terminating in Mill Street :

Work No. 2 A widening and improvement of Taff Street on the west side :

Work No. 3 A further widening and improvement of Taff Street on the west side: A.D. 1903.

Work No. 4 A widening and improvement of Berw Road on the north-west side:

Work No. 5 A further widening and improvement of Berw Road on the north-west side:

Work No. 6 A widening and improvement of Berw Road on the south-east side:

Work No. 7 A further widening and improvement of Berw Road on the south-east side:

Work No. 8 A bridge and approaches from Berw Road to a point near the junction of Bonvilston Road and Crossways Road:

Work No. 9 A widening and improvement of Coedpenmaen Road on the south-east side:

Work No. 10 A further widening and improvement of Coedpenmaen Road on the south-east side:

Work No. 11 A widening and improvement of High Street on the east side.

6. In the construction of the works authorised by this part of this Act the Council may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding two feet upwards or downwards except in the construction of the junction of the new street Work No. 1 with Rhondda Road in which case such vertical deviation may extend to but shall not exceed four feet upwards or downwards. Deviation.

7. If the works authorised by this Part of this Act are not completed within seven years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Council for executing those works or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as are then completed. Period for completion of works.

8. Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Council in connection with the works authorised by this Part of this Act and for the purposes thereof may make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous to the said works or any of them and may make diversions widenings or alterations of the lines or levels of any existing streets for the purpose of connecting the same with the Power to make subsidiary works.

A.D. 1903. — said works or any of them or of crossing under or over the same or otherwise and may alter divert or stop up all or any part of any drain sewer or channel within the said limits the Council providing a proper substitute before interrupting the flow of sewage in any drain or sewer and making compensation for any damage done by them in the execution of the powers of this section.

Council empowered or may be required to underpin or otherwise strengthen houses near works.

9. And whereas in order to avoid in the execution and maintenance of any works authorised by this Part of this Act injury to the houses and buildings within one hundred feet of the works it may be necessary to underpin or otherwise strengthen the same Therefore the Council at their own costs and charges may and if required by the owners or lessees of any such house or building shall subject as hereinafter provided underpin or otherwise strengthen the same and the following provisions shall have effect (that is to say) :—

- (1) At least ten days' notice shall unless in case of emergency be given to the owners lessees and occupiers or by the owners or lessees of the house or building so intended or so required to be underpinned or otherwise strengthened :
- (2) Each such notice if given by the Council shall be served in manner prescribed by section 19 of the Lands Clauses Consolidation Act 1845 and if given by the owners or lessees of the premises to be underpinned or strengthened shall be sent to the clerk :
- (3) If any owner lessee or occupier of any such house or building or the Council as the case may require shall within seven days after the giving of such notice give a counter-notice in writing that he or they as the case may be disputes the necessity of such underpinning or strengthening the question of the necessity shall be referred to the arbitration of an engineer to be agreed upon or in case of difference appointed at the instance of either party by the Board of Trade :
- (4) Such referee shall forthwith upon the application of either party proceed to inspect such house or building and determine the matter referred to him and in the event of his deciding that such underpinning or strengthening is necessary he may and if so required by such owner lessee or occupier shall prescribe the mode in which the same shall be executed and the Council may and shall proceed forthwith so to underpin or strengthen the said house or building :

(5) The Council shall be liable to compensate the owners lessees and occupiers of every such house or building for any inconvenience loss or damage which may result to them by reason of the exercise of the powers granted by this enactment : A.D. 1903.

(6) If in any case in which any house or building shall have been underpinned or strengthened on the requisition of the Council such underpinning or strengthening shall prove inadequate for the support, or protection of the house or building against further injury arising from the execution or use of the works of the Council then and in every such case unless such underpinning or strengthening shall have been done in pursuance of and in the mode prescribed by the referee the Council shall make compensation to the owners lessees and occupiers of such house or building for such injury provided the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof :

(7) Nothing in this enactment contained nor any dealing with any property in pursuance of this enactment shall relieve the Council from the liability to compensate under section 68 of the Lands Clauses Consolidation Act 1845 or under any other Act :

(8) Every case of compensation to be ascertained under this enactment shall be ascertained according to the provisions of the Lands Clauses Acts :

(9) Nothing in this section shall repeal or affect the application of section 92 of the Lands Clauses Consolidation Act 1845.

10. The Council may during the execution and for the purposes of any work by this Act authorised stop up any street and prevent all persons other than those bonâ fide going to or returning from any house in the street from passing along and using the same for any reasonable time but convenient access to the houses in such street shall be provided by the Council. Temporary stoppage of streets.

PART III.

LANDS.

11. Subject to the provisions of this Act the Council may enter on take and use all or any of the lands delineated on the deposited plans and described in the deposited books of reference. Power to acquire lands.

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Power to
purchase
additional
lands by
agreement.

12. The Council in addition to any other lands which they are by this Act authorised to acquire may by agreement purchase take on lease acquire and hold for the purposes of this Act any lands not exceeding in the whole ten acres provided that the Council shall not create or permit the creation of any nuisance on any such lands.

Power to
appropriate
lands for
purposes of
Act.

13. The Council may with the consent of the Local Government Board and subject to such conditions as that Board may prescribe appropriate and use for any of the purposes of this Act any lands for the time being vested in them which are not wanted for the purpose for which such lands were originally acquired but nothing in this section shall authorise the Council to create or permit the creation or continuance of any nuisance on any such lands.

Correction
of errors &c.
in deposited
plans and
books of
reference.

14.—(1) If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited books of reference the Council after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Glamorgan for the correction thereof.

(2) If it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Glamorgan and a duplicate thereof shall also be deposited with the clerk.

(3) The certificate and duplicate respectively shall be kept by such clerk of the peace and clerk respectively with the other documents to which the same relate and thereupon the deposited plans and books of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Council to take the lands and execute the works in accordance with such certificate.

Period for
compulsory
purchase of
lands.

15. The powers of the Council for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Owners may
be required
to sell part

16. Whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Council of the powers

of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Council and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect :—

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—
only of cer-
tain lands
and build-
ings.

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Council or each or any of them are hereinafter included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties":
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Council that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Council such portion only without the Council being obliged or compellable to purchase the whole the Council paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Council allege that such portion cannot be so severed the tribunal shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Council have compulsory powers of purchase) can be so severed:
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Council the portion which the tribunal shall have determined to be so severable without the Council being obliged or compellable to purchase the whole the Council paying such sum for the portion taken

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by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :

- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Council may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Council in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Restrictions
on displacing
persons of
labouring
class.

17.—(1) The Council shall not under the powers by this Act granted purchase or acquire in the district ten or more houses which on the fifteenth day of December last were or have been

since that day or shall hereafter be occupied either wholly or partly by persons belonging to the labouring class as tenants or lodgers unless and until— A.D. 1903.

(A) They shall have obtained the approval of the Local Government Board to a scheme for providing new dwellings for such number of persons as were residing in such houses on the fifteenth day of December last or for such number of persons as the Local Government Board shall after enquiry deem necessary having regard to the number of persons on or after that date residing in such houses and working within one mile therefrom and to the amount of vacant suitable accommodation in the immediate neighbourhood of such houses or to the place of employment of such persons and to all the circumstances of the case; and

(B) They shall have given security to the satisfaction of the Local Government Board for the carrying out of the scheme.

(2) The approval of the Local Government Board to any scheme under this section may be given either absolutely or conditionally and after the Local Government Board have approved of any such scheme they may from time to time approve either absolutely or conditionally of any modifications in the scheme.

(3) Every scheme under this section shall contain provisions prescribing the time within which it shall be carried out and shall require the new dwellings proposed to be provided under the scheme to be completed fit for occupation before the persons residing in the houses in respect of which the scheme is made are displaced :

Provided that the Local Government Board may dispense with the last-mentioned requirement subject to such conditions (if any) as they may see fit.

(4) Any provisions of any scheme under this section or any conditions subject to which the Local Government Board may have approved of any scheme or of any modifications of any scheme or subject to which they may have dispensed with the above mentioned requirement shall be enforceable by a writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(5) If the Council acquire or appropriate any house or houses under the powers by this Act granted in contravention of the foregoing provisions or displace or cause to be displaced the persons residing in any house or houses in contravention of the requirements of the scheme they shall be liable to a penalty of five

A.D. 1903. hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the consolidated fund of the United Kingdom. Provided that the court may if it think fit reduce such penalty.

(6) For the purpose of carrying out any scheme under this section the Council may appropriate any lands for the time being belonging to them or which they have power to acquire.

(7) Subject to the provisions of this section the Council and the Local Government Board and their inspectors shall have and may exercise for any purpose in connection with any scheme under this section all or any of the powers vested in them under the Public Health Act 1875 in the same manner in every respect as if the preparation and carrying into effect of such scheme were one of the general purposes of that Act :

Provided that all lands on which any buildings have been erected or provided by the Council in pursuance of any scheme under this section shall for a period of twenty-five years from the date of the scheme be appropriated for the purpose of dwellings and every conveyance demise or lease of such lands and buildings shall be endorsed with notice of this enactment :

Provided also that the Local Government Board may at any time dispense with all or any of the requirements of this subsection subject to such conditions (if any) as they may see fit.

(8) The Council shall pay to the Local Government Board a sum to be fixed by that Board in respect of the preparation and issue of any Provisional Order in pursuance of this section and any expenses incurred by that Board in relation to any enquiries under this section including the expenses of any witnesses summoned by the inspector holding the enquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

(9) For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

18. For the purpose of determining any disputed question of compensation payable in respect of lands taken for or in connection with any works by this Act authorised the following provisions shall apply and for the purposes of this section the expression "owner" shall mean the owners of and persons interested in the lands required by the Council :—

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Provisions as to compensation.

- (1) The tribunal shall take into account any permanent increase in the value of any lands retained by or belonging to the owner which in the opinion of the tribunal will result from or be caused by the construction of the work for or in connection with which the lands are required and generally all the other circumstances of the case which it is equitable to consider :
- (2) The tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the first day of January one thousand nine hundred and three if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

19. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Council may retain hold and use for such time as they may think fit and may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest in lands acquired by them under this Act and may sell exchange or dispose of any rents reserved on the sale exchange lease or disposition of such lands and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Power to retain sell &c. lands.

20. So long as any lands remain to be acquired by the Council under the authority of this Act and the Council possess unexhausted borrowing powers for the purpose of the acquisition of such lands they may so far as they consider necessary apply moneys (being capital or in the nature of capital) received by them

Proceeds of sale of surplus lands.

A.D. 1903. on any such sale lease exchange or disposition as aforesaid in the purchase of lands so remaining to be acquired but as to money so received and not so applied the Council shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment by this Act provided except to such extent and upon such terms as may be approved by the Local Government Board Provided that the amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by this Act for the acquisition of such lands Provided further that the borrowing powers by this Act authorised for the acquisition of such lands shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

Removal of
human
remains.

21.—(1) If and when the Council shall acquire the portion of the burial ground of Peniel Chapel shown on the deposited plans they shall before applying or using any part thereof for any of the purposes of this Act remove or cause to be removed the remains of all deceased persons interred in such portion of the said burial ground :

Provided that a Secretary of State on the application of the Council and on being satisfied that such removal is not necessary or desirable may dispense with all or any of the requirements of this section on such conditions (if any) as he thinks fit.

(2) Before proceeding to remove any such remains the Council shall publish a notice for three successive days in two local newspapers circulating in the district to the effect that it is intended to remove such remains and such notice shall have embodied in it the substance of subsections (3) (4) (5) (6) and (7) of this section.

(3) Any time within two months after the first publication of such notice any person who is an heir executor administrator or relative of any deceased person whose remains are interred in the said burial ground may give notice in writing to the Council of his intention to undertake the removal of such remains and thereupon he shall be at liberty to cause such remains to be removed to and re-interred in any burial ground or cemetery in which burials may legally take place.

(4) If any person giving such notice as aforesaid shall fail to satisfy the Council that he is such heir executor administrator or relative as he claims to be the question shall be determined on the

application of either party in a summary manner by the registrar of the Pontypridd County Court who shall have power to make an order specifying who shall remove the remains. A.D. 1903.
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(5) The expense of such removal and re-interment (not exceeding in respect of remains removed from any one grave the sum of ten pounds) shall be defrayed by the Council such sum to be apportioned if necessary equally according to the number of remains in the grave.

(6) If within the aforesaid period of two months no such notice as aforesaid shall have been given to the Council in respect of the remains in any grave or if after such notice has been given the persons giving the same shall fail to comply with the provisions of this section the Council may remove the remains of the deceased person and cause them to be interred in such other burial ground or cemetery in which burials may legally take place as the Council think suitable for the purpose.

(7) All monuments and tombstones relating to the remains of any deceased person removed under this section shall at the expense of the Council be removed and re-erected at the place of re-interment of such remains or at such place within the district as the Registrar of the Pontypridd County Court may direct on the application (if any) of such heir executor administrator or relative as aforesaid or failing such application on the application of the Council.

(8) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health of the district.

22. The agreement dated the thirty-first day of March one thousand nine hundred and three between the company of proprietors of the Glamorganshire Canal Navigation of the one part and the Council of the other part and the supplemental agreement dated the second day of May one thousand nine hundred and three and made between the same parties as set forth in the Second Schedule to this Act are hereby confirmed and made binding on the parties thereto. Confirming scheduled agreements.

23. For the protection of the Taff Vale Railway Company (in this section called "the company") the following provisions shall unless otherwise agreed between the Council and the Company be observed and have effect (that is to say):— For protection of Taff Vale Railway Company.

- (1) Notwithstanding anything contained in this Act or shown on the deposited plans the Council shall not except by agreement with the company purchase or acquire any part

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of the property coloured green on the plan signed by Reginald Page Wilson and George Thomas Sibbering being part of the property numbered on the deposited plans and in the book of reference 9 nor any part of the properties numbered on the said plans and in the said book of reference 1A 9A 20 21 22 23 24 and 25 nor so much of the properties numbered on the said deposited plans and in the said book of reference 11 18 25A 26A 28 and 55 as are the property of the company. The limit of deviation on the western side of the property numbered 28 on the said deposited plans and in the said book of reference shall be fixed at not less than eighty-two feet east of the south-eastern main quoin of the bridge carrying the Taff Vale main line of railway over Mill Street in Pontypridd:

- (2) Notwithstanding anything in this Act contained the Council shall not except by agreement with the company be authorised to purchase or take any greater or other estate in so much of the properties numbered on the deposited plans and in the book of reference 27 and 27A as belong to the company than an easement or right of using such land in perpetuity for the purpose of constructing maintaining and upholding Work No. 1 in the lines and according to the levels shown on the said deposited plans and nothing in this Act contained or shown on the said plans shall prejudice or affect the agreement dated the tenth day of January one thousand eight hundred and ninety-nine between the Council and the company:
- (3) In the event of the company desiring hereafter to repair or reconstruct the bridge carrying their main line of railway over the River Rhondda the Council shall give all such reasonable facilities in or upon the new street Work No. 1 and the tramway thereon (together in this section called "the street") as may be found necessary for carrying out such repair or reconstruction including the temporary closing of the street if found necessary. Any question which may arise with regard to the necessity for interfering with or closing the street or the traffic thereon or with regard to the facilities to be given and the extent thereof shall be decided by an arbitrator to be appointed by the Board of Trade:
- (4) The construction by the Council of the street shall not affect prejudice or interfere with the right of the company to widen their said railway at its existing level or to execute

any works which they may from time to time require to carry out for widening the said bridge or viaduct. A.D. 1903.

24. For the protection of George Stuart Seaton (in this section called "the owner") and notwithstanding anything to the contrary in this Act contained the following provisions shall unless otherwise agreed in writing between the owner and the Council have effect (that is to say):—

For protec-
tion of
George
Stuart
Seaton.

The Council shall not in executing the works under the sections of this Act the respective marginal notes whereof are "Power to make new streets" and "Power to make subsidiary works" construct the new street Work No. 1 so that the levels thereof in any way affect the existing cellarage of the property numbered 3 on the deposited plans and known as the "Welsh Harp" nor shall they alter the present levels of the Rhondda Road contiguous to such property without making full compensation to the owner and his tenants for all inconvenience loss or damage (if any) that he or they may sustain by reason thereof.

PART IV.

TRAMWAY.

25. Subject to the provisions of this Act the Council may make form lay down use and maintain the tramway within the district hereinafter described in the lines and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections (but so that the same be within the lines and on the level of the new street being Work No. 1 by this Act authorised) with all proper rails plates sleepers channels junctions turntables turnouts crossings passing-places triangles posts poles brackets wires waiting-rooms stables carriage houses engines boiler and dynamo houses battery and transformer houses stations sheds buildings engines dynamos batteries transformers machinery works and conveniences connected therewith.

Power to
make a
tramway.

The tramway hereinbefore referred to and authorised by this Act is—

A tramway (double line 2 furlongs 0·74 chain in length) to be laid down along the new street being Work No. 1 by this Act authorised and Mill Street commencing by a junction with the existing tramway in Rhondda Road at

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its termination under the Taff Vale Railway bridge and terminating in Taff Street by a junction with Tramway No. 1 authorised by the Pontypridd Tramways Order 1902.

Period for
completion
of tramway.

26. If the tramway authorised by this Act is not completed within two years from the construction of the new street being Work No. 1 by this Act authorised then on the expiration of that period the powers by this Act granted to the Council for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Attachment
of brackets
to buildings.

27. The Council may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required for the working of any tramways for the time being belonging to the Council by mechanical power:

Provided that—

- (1) Where in the opinion of the Council any consent under this section is unreasonably refused they may appeal to a petty sessional court who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable in the circumstances or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid:
- (2) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Council notice in writing requiring the attachments to be removed Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (1):
- (3) The owner may require the Council to temporarily remove the attachments where necessary during any reconstruction or repair of the building.

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rack rent shall be deemed to be the owner.

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28. The tramway by this Act authorised shall form part of the tramway undertaking of the Council.

Tramway to form part of tramway undertaking of Council.

29. The following sections and schedule of the Pontypridd Urban District Council Tramways Order 1901 (confirmed by the Tramways Orders Confirmation (No. 1) Act 1901) and the following sections of the Pontypridd Urban District Council Tramways Order 1902 (confirmed by the Tramways Orders Confirmation (No. 2) Act 1902) shall so far as the same are applicable in that behalf and are not inconsistent with the provisions of this Act extend and apply with the necessary modifications to and in relation to the tramway by this Act authorised and in construing the said sections and schedule for the purposes of this Act the expression "promoters" shall mean the Council. The incorporated sections hereinbefore referred to are—

Incorporation of provisions from Orders of 1901 and 1902.

Pontypridd Urban District Council Tramways Order 1901.

- Section 11 Gauge and width of carriages;
- Section 12 Provisions as to construction of tramways;
- Section 13 Rails of tramways;
- Section 14 Penalty for not maintaining rails and roads in good condition;
- Section 15 Tramways to be kept on level of surface of road;
- Section 16 Alteration of tramways;
- Section 17 Cross-over roads to be constructed in certain cases;
- Section 18 Additional cross-over roads &c. may be made where necessary;
- Section 19 Temporary tramways may be made when necessary;
- Section 20 Application of road materials excavated in construction of works;
- Section 21 Tramways not to be opened until certified by Board of Trade;
- Section 22 Provisions as to motive power;
- Section 23 Mechanical power works;
- Section 24 Mechanical power works to be subject to section 30 of Tramways Act 1870;
- Section 25 Byelaws;
- Section 26 Amendment of the Tramways Act 1870 as to byelaws by local authority;
- Section 27 Special provisions as to use of electrical power;

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- Section 30 Promoters' lessees not bound to carry animals goods &c. ;
- Section 31 Passengers' fares ;
- Section 32 As to fares on Sundays and holidays ;
- Section 33 Passengers' luggage ;
- Section 34 Cheap fares for labouring classes ;
- Section 35 Rates and charges for animals goods &c. ;
- Section 36 Payment of rates ;
- Section 37 Periodical revision of rates and charges ;
- Section 38 Power to Council to work tramways ;
- Section 39 Regulations ;
- Section 42 Mortgage may include rents &c. ;
- Section 43 Orders &c. of the Board of Trade ;
- Section 44 Recovery of penalties ;
- Section 45 Audit of accounts ;
- Section 46 Protection of local authority ;
- Section 47 Form and delivery of notices ;
- Section 48 Provisions as to arbitration ;
- Section 49 Saving for general Acts ; and
 Schedule.

Pontypridd Urban District Council Tramways Order 1902.

- Section 5 Notice of alterations of tramways &c. ;
- Section 6 For protection of Postmaster General ;
- Section 7 Traffic on tramways ;
- Section 8 Delivery of notices.

Working
 agreements.

30. The Council may with the consent of the Board of Trade but subject to the provisions of this Act—

(1) Enter into and fulfil contracts and agreements with the owners or lessees for the time being of the portion of the tramway authorised by the Pontypridd and Rhondda Valley Tramways Order 1882 and constructed at the passing of this Act both within and without the district in relation to the said tramway with respect to—

(A) The leasing working running over use maintenance and management by the contracting parties or any or either of them of the whole or any part of the said tramway ;

(B) The supply and maintenance under and during the continuance of any such agreement as aforesaid for the working of all or any part of the said tramway by

the other of them of rolling stock plant machinery and electrical energy necessary for the purposes of such agreement ;

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(c) The interchange accommodation and forwarding of carriages articles passengers and traffic coming from or destined for the respective tramway undertakings of the contracting parties ;

(D) The fixing collection and apportionment of the rates charges and other receipts arising from such traffic ; and

(E) The appointment of joint committees for carrying into effect all such agreements :

(2) For the purposes of and during the continuance of any such agreement the contracting party leasing working running-over using managing or maintaining the said tramway or any part or parts thereof respectively shall in accordance with and to the extent provided by such agreement have and may exercise in respect of so much of the said tramway leased worked run-over used managed or maintained by that party all such and the like powers and remedies for the taking collection and recovery of rates and charges and otherwise howsoever as are by or under the Acts respectively relating to such tramway conferred upon the person owning such tramway :

(3) No electrical energy shall be supplied or shall continue to be supplied by the Council under the provisions of this section in any district in which any local authority company or person shall be supplying energy under statutory authority without the consent in writing of such local authority company or person. Provided that the consent of the South Wales Electrical Power Distribution Company shall not be necessary with regard to the supply by the Council of energy for the purpose of working the said tramway :

(4) The proviso to section 40 of the Pontypridd Urban District Council Tramways Order 1901 shall not apply to the working by the Council of the said tramway under the powers of this section.

31. The provisions of sections 26 to 33 of the Tramways Act 1870 (except so much of section 28 as relates to the repair of the road between and on each side of the rails of a tramway) shall apply as if all posts tubes pipes wires and other apparatus used or to be used by the Council for the purposes of mechanical power were parts of the tramway.

Apparatus
used for
mechanical
power to be
deemed part
of tramway.

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PART V.

ELECTRICITY.

Power to
supply elec-
tric fittings.
Exemption of
fittings from
distress.

32.—(1) The Council may provide sell let for hire and fix set up alter repair and remove (but shall not manufacture) lamps meters electric lines fittings motors apparatus and things for lighting and motive power and for all other purposes for which electrical energy can or may be used or otherwise necessary or proper for the supply distribution consumption or use of electrical energy (in this Act referred to as “fittings”) and may provide all materials and do all works necessary or proper in that behalf and may require and take such remuneration in money or such rents and charges for and make such terms and conditions with respect to the sale letting fixing setting up altering repairing or removing of such fittings and for securing their safety and return to the Council as the Council may think fit or as may be agreed upon between them and the person to or for whom the same are sold supplied let fixed set up altered repaired or removed.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord’s remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Council as the actual owners thereof.

Council may
refuse to
supply elec-
trical energy
in certain
cases.

33. The Council may refuse to supply electrical energy to any person whose payments for the supply of electrical energy are for the time being in arrear whether any such payments be due to the Council in respect of a supply to the premises in respect of which such supply is demanded or in respect of other premises.

As to supply
of electricity
where con-
sumer has
separate
supply.

34.—(1) Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 or the Pontypridd Electric Lighting Order 1901 incorporating the Electric Lighting (Clauses) Act 1899 a person shall not be entitled to demand from the Council a supply of electrical energy to premises having a separate supply (or if such separate supply shall be provided after such demand he shall not be entitled to a supply) unless such person shall have previously agreed to pay to the Council such minimum annual

sum as will give to the Council a reasonable return on the capital A.D. 1903.
 expenditure and other standing charges incurred or to be incurred
 by the Council to meet the possible maximum demand of such
 person.

(2) In case the Council and the person demanding such
 supply of electrical energy shall fail to agree on the amount of such
 minimum annual sum to be paid by such person the amount of
 such minimum annual sum shall be fixed by an electrical engineer
 to be appointed as arbitrator by the President of the Society of
 Electrical Engineers.

35. The section of this Act the marginal note of which is Attachment
 "Attachment of brackets to buildings" shall extend and apply to of brackets
 the attachment to buildings of brackets lamps and apparatus for and lamps to
 the purpose of lighting any street in the district. buildings.

36. The Council on the one hand and any local authority Supply of
 company or person owning or working tramways or light railways electrical
 within or without the area of supply which are connected directly energy for
 or indirectly with light railways or tramways within that area on traction
 the other hand may enter into and carry into effect agreements for purposes.
 the supply by the Council to such local authority company or person
 of electrical energy for the purposes of working any such tramways
 or light railways Provided that no energy shall be supplied or
 shall continue to be supplied by the Council under the provisions of
 this section in any district in which any local authority company or
 person shall be supplying energy under statutory authority without
 the consent in writing of such local authority company or person
 Provided also that the consent of the South Wales Electrical
 Power Distribution Company shall not be necessary with regard
 to the supply by the Council of energy for the purpose of
 working the tramway in the urban district of Rhondda from Hafod
 to Perth.

37. Notwithstanding anything in section 9 of the Electric Altering
 Lighting Act 1882 contained the annual statement of accounts of date for
 the electricity undertaking of the Council shall after the passing of filling up
 this Act be filled up on or before the thirtieth day of June in every annual
 year and shall be made up to the thirty-first day of March next accounts for
 preceding and section 9 of the Electric Lighting Act 1882 shall be electricity
 read and have effect as regards the undertaking of the Council as if undertaking.
 the thirtieth day of June and the thirty-first day of March were
 therein mentioned instead of the twenty-fifth day of March and the
 thirty-first day of December.

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PART VI.

FINANCIAL AND MISCELLANEOUS PROVISIONS.

Power to
borrow.

38.—(1) The Council may independently of any other borrowing power borrow at interest any sum or sums of money for the purposes hereinafter mentioned not exceeding the respective amounts following (that is to say):—

- (a) For and in connection with the purchase of lands and the construction of the new street and other street works by this Act authorised the sum of thirty-one thousand pounds:
- (b) For and in connection with the construction of the tramway by this Act authorised the sum of three thousand pounds:
- (c) For gas producing plant retorts purifiers scrubbers and other plant of a similar character the sum of fifteen thousand pounds:
- (d) For gas mains fittings and gasworks purposes other than those mentioned in paragraph (c) the sum of ten thousand pounds:
- (e) For paying the costs and expenses of this Act as hereinafter provided the sum requisite for that purpose:

And with the consent of the Local Government Board such further moneys for or in connection with the construction of the new street and other street works by this Act authorised as that Board may sanction and with the consent of the Board of Trade such further moneys for tramway purposes as that Board may sanction.

(2) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Council may mortgage or charge as regards moneys borrowed for tramway purposes the revenue of their tramway undertaking and the district fund and general district rate as regards moneys borrowed for gasworks purposes the revenue of the gas undertaking of the Council and as regards moneys borrowed for the other purposes of this Act the district fund and general district rate.

Certain
regulations
of Public
Health Act
1875 as to
borrowing
not to apply

39. The powers of borrowing money by this Act given shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Council may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

40. The following provisions of the Public Health Act 1875 shall extend and apply to mortgages granted under this Act (that is to say) :—

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Provisions
of Public
Health Act
1875 as to
mortgages.

Section 236 Form of mortgage ;

Section 237 Register of mortgages ;

Section 238 Transfer of mortgages.

41. The Council shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as " the prescribed period ") following (that is to say) :—

Periods for
repayment
of money
borrowed.

As to money borrowed for the purposes (a) mentioned in the section of this Act the marginal note whereof is " Power to borrow " within sixty years from the date or dates of borrowing the same :

As to money borrowed for the purposes (b) and (c) in the said section mentioned within thirty years from the date or dates of borrowing the same :

As to money borrowed for the purposes (d) in the said section mentioned within twenty years from the date or dates of borrowing the same :

As to money borrowed for the purpose (e) in the said section mentioned within five years from the date or dates of borrowing the same :

As to money borrowed with the consent of the Board of Trade or the Local Government Board within such period as the respective Boards may sanction.

42. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year from the date of borrowing the sum in respect of which the payment is made.

Mode of
payment off
of money
borrowed.

43.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed and maintained either—

Sinking
fund.

(a) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a non-accumulating sinking fund ; or

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(b) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Council being at liberty to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council:

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied toward such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations

thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided always that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct. A.D. 1903.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the Council may with the consent of that Board discontinue the annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Council with the consent of the Local Government Board may determine.

44. A person lending money to the Council under this Act shall not be bound to inquire as to the observance by the Council of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or any part thereof. Protection of lender from inquiry.

45. The Council shall not be bound to see to the execution of any trust whether express implied or constructive to which any Council not to regard trusts.

A.D. 1903. loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Council shall be a sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof not entered in their register.

Appoint-
ment of
receiver.

46. The mortgagees of the Council by virtue of this Act may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one thousand pounds in the whole. The application for the appointment of a receiver shall be made to the High Court.

Power to
re-borrow.

47. If the Council pay off any moneys borrowed by them under this Act otherwise than by instalments or by means of a sinking fund or out of the proceeds of the sale of land or other property or out of fines or premiums on leases or out of other moneys received on capital account not being borrowed moneys they may re-borrow the same but all moneys so re-borrowed shall be repaid within the prescribed period and shall be deemed to form the same loan as the moneys originally borrowed and the obligations of the Council with respect to the repayment of the loan and to the provision to be made for such repayment shall not be diminished by reason of such re-borrowing.

Return
respecting
sinking fund
to Local
Government
Board.

48.—(1) The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments

[3 EDW. 7.] *Pontypridd Urban District Council* [Ch. cxv.]
Act, 1903.

and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

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—

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

49. All money borrowed by the Council under the powers of this Act shall be applied only to the purposes for which it is authorised to be borrowed and to which capital is properly applicable.

Application
of money
borrowed.

50. Any expenses of the execution by the Council of this Act with respect to which no other provision is made may be defrayed by the Council out of the district fund and general district rate or other funds or revenues as the Council may in their discretion having regard to the object of the expenditure deem just.

Expenses of
execution of
Act.

51. The Council shall keep the accounts in respect of their tramway undertaking separate from all their other accounts distinguishing therein capital from revenue.

Separate
accounts to
be kept and
audited.

A.D. 1903.

Rates for
public
libraries.

52. Notwithstanding anything in the Public Libraries Acts 1892 and 1893 the rate or addition to a rate for the purposes of those Acts in the district for any one financial year may amount to but shall not exceed three-halfpence in the pound.

Inquiries
by Local
Government
Board.

53.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) The Council shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

Costs of
Act.

54. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the district fund and general district rate or out of moneys to be borrowed under this Act.

The SCHEDULES referred to in the foregoing Act. A.D. 1903.

THE FIRST SCHEDULE.

PROPERTIES OF WHICH PORTIONS ONLY ARE REQUIRED.

Area.	Numbers on deposited Plans.
Urban District of Pontypridd -	4 5 5A 6 9 12 26 26A 27 27A 33 34 43 47 48 54 56.

THE SECOND SCHEDULE.

THIS INDENTURE made the thirty-first day of March one thousand nine hundred and three between the COMPANY OF PROPRIETORS OF THE GLAMORGANSHIRE CANAL NAVIGATION hereinafter referred to as "the canal company" (which expression where necessary shall also include their successors and assigns) of the one part and the URBAN DISTRICT COUNCIL OF PONTYPRIDD hereinafter referred to as "the Council" (which expression where necessary shall also include their successors and assigns) of the other part.

WHEREAS the canal company are seised in fee simple in possession of the pieces of land hereinafter described and coloured pink on the plans signed by Charles Evans on behalf of the canal company and by John Colenso Jones on behalf of the Council :

And whereas the Council are authorised to acquire and take the said pieces of land for the purpose of the widening hereinafter mentioned :

And whereas the canal company have agreed to grant to the Council such easements over the said pieces of land as are hereinafter mentioned in consideration of the payment by the Council to the canal company of the sum of one hundred pounds and of the Council entering into the covenants hereinafter contained :

A.D. 1903.

Now this Indenture Witnesseth that in consideration of the sum of one hundred pounds now paid by the Council to the canal company the receipt whereof is hereby acknowledged and of the covenants hereinafter contained the canal company so far as they lawfully can or may but not so as to give or imply any warrant or warranty of title so to do hereby grant unto the Council all that the easement or right of making a road over the pieces of land situate at Pontypridd in the county of Glamorgan coloured pink on the said plans and of maintaining and using the same as part of and for the purpose of widening the public roads known as Cilfynydd Road Pontshonorton Road and Coedpenmaen Road but so that no right to any support from the mines minerals or mineral substances lying under the said pieces of land or under any lands adjoining or near thereto shall be deemed to be included in the grant hereby made and that such grant shall be deemed to be subject to the rights of all persons from time to time interested in such mines and minerals or mineral substances and that the canal company shall not be in any way responsible or liable to the Council for any injury whether caused by subsidence or otherwise which may be occasioned to the said roads or any works hereby covenanted to be executed by the Council by the working getting or removal of any such mines minerals or mineral substances to have and to hold the right or easement hereby granted subject and for the purpose as aforesaid unto the Council for ever And in consideration of the grant hereinbefore made the Council hereby covenant with the canal company and so that and to the intent that the benefit of the covenants herein contained may run with the adjoining and adjacent land of the canal company and every part thereof and enure for the benefit of all persons from time to time owners of or interested in such last mentioned lands that the Council will use the right or easement hereby granted for the purpose of widening Cilfynydd Road Pontshonorton Road and Coedpenmaen Road and to be dedicated to the public accordingly and not for any other purpose and will as soon as reasonably may be forthwith cause the same to be thrown into and form part of such roads respectively And will before taking down the existing fence or wall between the said pieces of land and Cilfynydd Road Pontshonorton Road and Coedpenmaen Road or any part thereof or before making a roadway on the said pieces of land or any part thereof or allowing the public to have access thereto erect at the expense of the Council as a support for the said roads and also as a support for the canal and property of the canal company respectively as the case may be retaining and fence walls between the said pieces of land coloured pink and the property of the canal company in such places as the engineer of the canal company shall require and of such height thickness materials and structure as shall be reasonably approved by such engineer and to his satisfaction and will at all times to the like satisfaction maintain such walls in good repair and will whenever such walls or any part or parts thereof shall subside increase from time to time the heights thereof to such extent as shall be necessary for maintaining the same always at their original levels above present Ordnance datum And shall and will at the expense of the Council make form and metal a roadway on the said pieces of land and thereafter maintain the same in good repair :

[3 EDW. 7.] *Pontypridd Urban District Council* [Ch. cxv.]
Act, 1903.

And also that the canal company and all persons claiming under them may have and exercise the same rights of user over and of erecting buildings fronting upon the said pieces of land as they would have over any other public road. Provided always that although the retaining and fence walls hereinbefore mentioned are to be maintained by the Council such walls shall be considered the property of the canal company and the canal company may build upon or make openings in such walls and otherwise use the same for any purpose they may think fit without being responsible for any damage thereby occasioned. And also that the Council will not at any time acquire or seek to acquire any further interest in the land hereinbefore described and that the grant hereby made shall be in lieu of all powers which the Council may have of acquiring compulsorily any interest in the said pieces of land: A.D. 1903.

And also that the Council shall be responsible for and shall pay to the canal company full compensation for any injury which may at any time or times happen or be occasioned to the canal or property of the canal company by reason of or in anywise connected with the grant hereby made and the works hereby agreed to be executed whether during the execution of the same or at any time afterwards and shall indemnify the canal company against any damages or costs which they may be or become liable to pay to any person or persons on account of the same:

And also that the canal company shall at all times have full power to improve or alter in any way their canal and property (including power to convert the same into a railway) and shall not be responsible to the Council or any person for any injury to so much of the said roads as shall be widened by virtue of the grant hereby made or to the walls hereinbefore mentioned which may happen during or in consequence of any such improvement or alteration and in particular if it should at any time be considered necessary by the canal company to reconstruct or alter or in any way interfere with their said canal and property for the purpose of converting the same into a railway or for any other purpose or in any way which may interfere with so much of the said roads as aforesaid or the said walls such alterations shall be made in the same as may be required by the engineer for the time being of the canal company and the Council shall at their own expense alter the position of the same from time to time and so often as the same may be required on account of any such reconstruction improvement or alteration as aforesaid and if the Council fail to make such alterations on receiving reasonable notice so to do from the canal company the canal company may themselves make such alterations and recover the expense of so doing from the Council. And also that the existence of so much of the said roads as aforesaid or the said walls shall not at any time be deemed or taken to constitute a ground of opposition to any Bill or Provisional Order which may at any time be proposed or promoted in Parliament for the improvement or alteration of or in anywise connected with the undertaking or works of the canal company.

A.D. 1903.

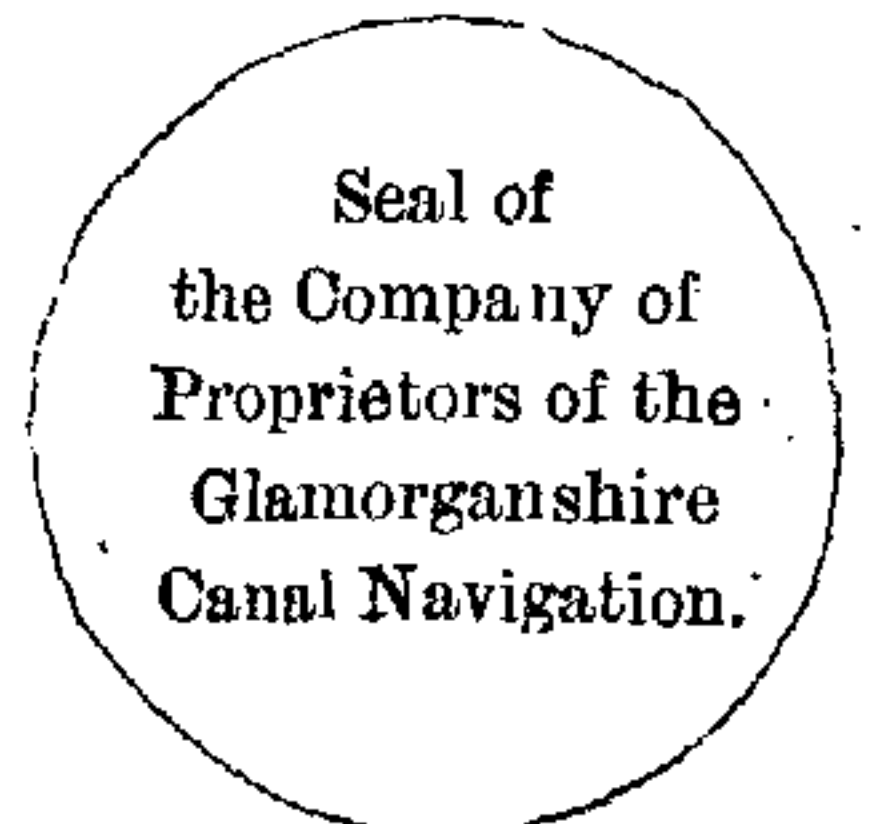
In witness whereof the said parties to these presents have caused their common seals respectively to be hereunto affixed the day and year first before written.

The common seal of the company of proprietors of the Glamorganshire Canal Navigation was hereunto affixed in the presence of

JOHN STUART CORBETT

Solicitor

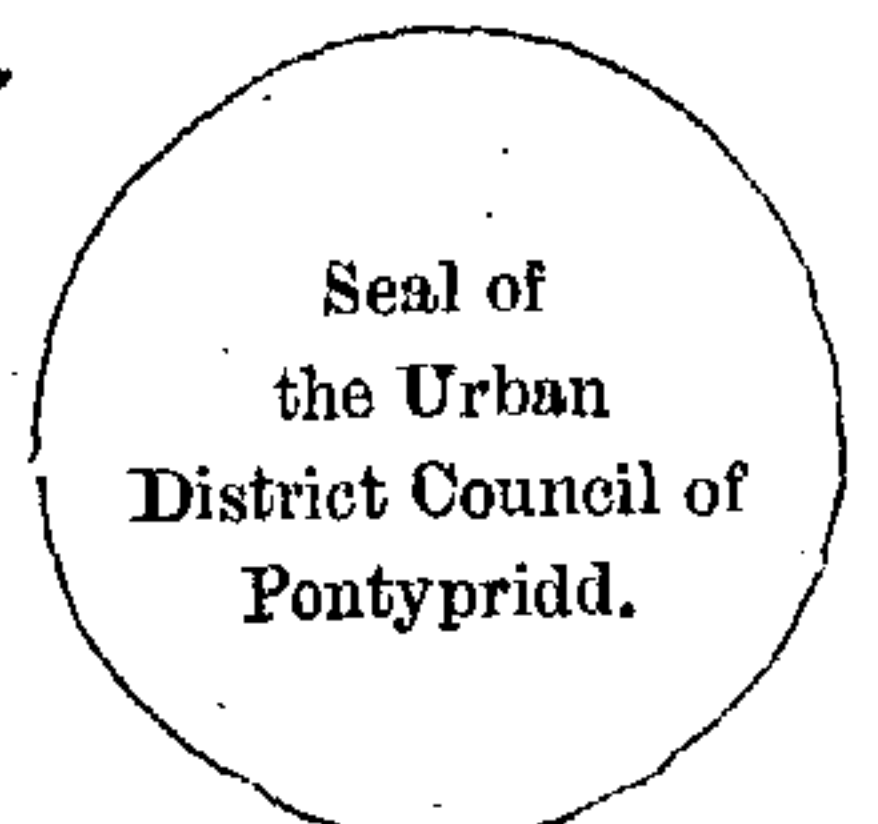
Cardiff.



The common seal of the urban district council of Pontypridd was affixed hereto at a meeting of the said Council in the presence of

J. COLENZO JONES

Clerk to the Council.



THIS INDENTURE made the second day of May one thousand nine hundred and three between the COMPANY OF PROPRIETORS OF THE GLAMORGANSHIRE CANAL NAVIGATION hereinafter referred to as "the canal company" (which expression where necessary shall also include their successors and assigns) of the one part and the URBAN DISTRICT COUNCIL OF PONTYPRIDD hereinafter referred to as "the Council" (which expression where necessary shall also include their successors and assigns) of the other part and supplemental to an indenture dated the thirty-first day of March one thousand nine hundred and three and made between the same parties and in the same order being a grant of easement for the purpose of widening certain roads at Pontypridd in the county of Glamorgan hereinafter referred to as "the principal indenture."

WITNESSETH and it is hereby covenanted agreed and declared between and by the parties hereto that the principal indenture and the plans therein referred to shall be read and have effect as if the land coloured pink on the plan signed by Charles Evans on behalf of the canal company and by John Colenso Jones on behalf of the Council and marked "A" and hereinafter called "the supplemental plan" had been coloured pink on the plans referred to in the principal indenture in addition to the lands referred to in the principal indenture and that the covenants provisoes and agreements con-

[3 EDW. 7.] *Pontypridd Urban District Council* [Ch. cxv.]
Act, 1903.

tained in the principal indenture shall apply and extend to the land coloured pink on the supplemental plan in the same manner and to the same extent as if the land coloured pink on the supplemental plan had been originally included in the land coloured pink on the plans referred to in the principal indenture in addition to the lands referred to in the principal indenture Provided always that notwithstanding anything herein contained this Indenture shall not be binding on the parties hereto unless confirmed by Parliament during the present session In witness whereof the said parties to these presents have caused their common seals respectively to be hereunto affixed the day and year first before written.

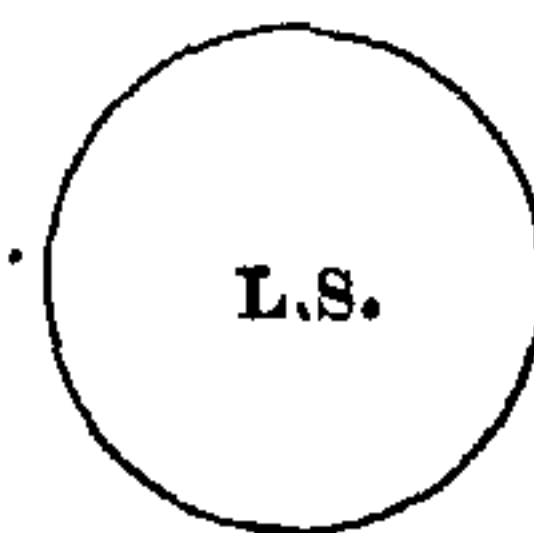
A.D. 1903.

The common seal of the company of proprietors
of the Glamorganshire Canal Navigation was
hereunto affixed in the presence of

JOHN STUART CORBETT

Solicitor

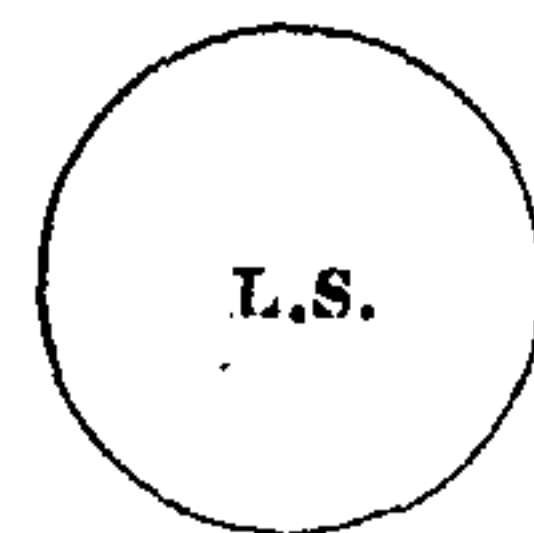
Cardiff.



The common seal of the urban district council of
Pontypridd was affixed hereto at a meeting of
the said Council in the presence of

J. COLENZO JONES

Clerk to the Council.



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